

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 23, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Pete Laybourn, Scott Roybal, Tom Segrave and Jeff White. Absent: Richard Johnson and Dr. Mark Rinne. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Segrave, and pursuant to support received by Mr. Cook and Mr. Roybal, item #11 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Dr. Aldrich and Mr. Esquibel, item #12 was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on October 9, 2023. Motion (per Consent Agenda) carried.

ORDINANCE –3rd READING – Amending certain Sections of Chapter 13.20, Wastewater Treatment and Disposal of Title 13, Public Services of the Municipal Code of the City of Cheyenne, Wyoming, regarding wastewater treatment and disposal. Reporting for Public Services Committee, Mr. Segrave moved to approve on third and final reading, seconded by Mr. Esquibel. Mr. Segrave moved to amend by substitute dated October 13, 2023, seconded by Mr. Cook. Motion to amend by substitute carried. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by Brad Brooks, Director of Board of Public Utilities (BOPU). (#4528)

ORDINANCE –3rd READING – Creating Section 12.04.240, Mobile Storage Containers on Public Right-of-Way; Permit Required, of Chapter 12.04, Streets, Sidewalks and Driveways Generally, of Title 12, Streets, Sidewalks and Public Places, of the Municipal Code of the City of Cheyenne, Wyoming and making a conforming amendment as specified. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Dr. Aldrich. Mr. White moved to postpone until the November 13, 2023 meeting, seconded by Dr. Aldrich. Motion to postpone carried. Voting “yes” – all members of the governing body present.

ORDINANCE –2nd READING – Amending Section 2.04.020, Mayor-Election-Term of Office, of Chapter 2.04, Mayor and City Council, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, specifying the employment status of persons

hired in the Mayor's office. Mr. Segrave moved to approve on second reading, seconded by Mr. Cook. Motion carried. Voting "yes" – all members of the governing body present, with the exception of Dr. Aldrich voting "no".

ORDINANCE –1st READING – Amending the Official Zoning map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business Emphasis to CB Community Business for land located at Lot 2, Block 1, Sunnyside Addition, 10th Filing -referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending Subsections 6.6.3.b.3, 6.7.5.c, and 6.9.3.e of the Unified Development Code (UDC), changing the building façade design requirements for multifamily residential development - referred to Public Services Committee. (Sponsor – Mr. Cook)

RESOLUTION – Certifying compliance with Wyoming Statute § 15-1-402 for a City-initiated annexation of tracts of land in Township 14 North, Range 67 West of the 6th p.m. for an area generally located west of Interstate 25, north of State Highway 210, east of Roundtop Road, and south of Horse Creek Road. Mr. Segrave moved to adopt, seconded by Mr. Cook. Mr. Segrave moved to postpone until the November 13, 2023 meeting, seconded by Mr. Cook. Motion to postpone carried. Voting "yes"- all members of the governing body present. Public comment was made by Mike White.

RESOLUTION – Requiring the study and submittal of a report to the Governing Body analyzing the best avenue for transitioning the Downtown Parking Program to a contract or a professional services model. Mr. White moved to adopt, seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body present, with the exception of Mr. Laybourn voting "no". Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, Mr. Laybourn, and Mr. Segrave. (#3659)

RESOLUTION – Authorizing the Mayor to consent to the Partial Assignment, Assumption and Co-Tenancy of a Wind Energy Lease Agreement regarding the Roundhouse Wind Energy Facility partially located on the Belvoir Ranch. Mr. Segrave moved to adopt, seconded by Mr. Cook. Motion to adopt carried. Voting "yes" – all members of the governing body present. Comments were made by the following members of the governing body: Mr. Segrave. Public comment was made by Mitch Dailey, developer representative. (#6360)

[CA] RESOLUTION – To adopt the Certificate of Canvass and Declaration of Results of the Canvassing Board for the Cheyenne Downtown Development Authority District Special Election held October 18, 2023 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Certifying the Van Buren Corridor Plan and adopting the Van Buren Corridor Plan as an amendment to the Connect 2045 of the Cheyenne Area Master Transportation Plan regarding the future design and reconstruction of Van Buren Avenue between Dell Range and Lincolnway – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Certifying the Powderhouse Road Corridor Study and adopting the Powderhouse Road Corridor Study as an amendment to the Connect 2045 of the Cheyenne Area Master Transportation Plan regarding the future design and reconstruction of Powderhouse Road between Dell Range and US 82 – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Pursuant to Wyoming Statute § 15-9-107 finding and declaring parts of the Ridge and Holland area in the City of Cheyenne as blight and authorizing the redevelopment thereof – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Alliance Addition, 5th Filing, a Replat of Lots 1-17, Block 1, Alliance Addition, 4th Filing and a portion of Tract 12, Dell Range Addition, City of Cheyenne, Laramie County, Wyoming (located west of Ridge Road, north of Jackson Street) – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Authorizing the Mayor to Execute a Settlement Agreement with WJE, LLC to resolve the April 6, 2023 Notice of Governmental Claim regarding an alleged taking of real property in Saddle Ridge adjacent to Christensen Road – referred to Finance Committee. (Sponsor – Mr. White)

[CA] Memorandum of Understanding between the City of Cheyenne and The Pointe Homeowners' Association for landscaping maintenance services along the Greater Cheyenne Greenway. Motion (per Consent Agenda) carried. (#7841)

[CA] Grant Award Agreement between the City of Cheyenne, Cheyenne Fire Rescue Department, and the Wyoming Office of Homeland Security, FEMA, Grant Programs Directorate, SHSP Grant Fiscal Year 2021 in the amount of \$50,414.78 for the Cheyenne Fire Rescue Regional Emergency Response Team 7 (RERT7) (Revenue to the City). Motion (per Consent Agenda) carried. (#7842)

Memorandum of Understanding between the City of Cheyenne and the Saddle Ridge Homeowners' Association c/o WJE, LLC for the city to accept ownership of Lot 11, Block 3, Saddle Ridge 16th Filing and Tracts 1, 2 and 3 of Saddle Ridge 18th Filing and to outline the design, construction and maintenance responsibilities for the areas (Community Facility Fees). Mr. White moved to approve in an amount not to exceed \$75,600.00, seconded by Mr. Esquibel. Motion failed. Voting "no" - all members of the governing body present, with the exception of Mr. Esquibel and Mr. Roybal voting "yes." Comments were made by the following council members: Dr. Aldrich, Mr. Esquibel, and Mr. Laybourn. Public comment was made by John Edwards.

[CA] Memorandum of Understanding between the City of Cheyenne and the State Construction Department (SCD) to designate the Municipal Building as the primary emergency evacuation assembly area for the SCD) – referred to Public Services Committee.

[CA] Subgrantee Agreement between the City of Cheyenne and Laramie County for the FY 2023 Byrne Justice Assistance Grant to assist with community policing efforts. (BJA FY23 Edward Byrne Memorial Justice Assistance Grant Program) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and WYDOT for a Wyoming Rural Public Transportation grant to assist in providing a local match for operating funds for the Transit Program for FY 2024 (Revenue to the City) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Wyoming Department of Health, Aging Division, to provide support services to persons 60 years or older under the Title III-B program grant for FY 2024 (III-B Division on Aging Grant) – referred to Finance Committee.

[CA] Development Agreement between the City of Cheyenne and Goat Systems, LLC, for the development of a data center campus and ancillary uses (Revenue to the City) – referred to Public Services Committee.

Contract Modification #1 to Contract #7814 between the City of Cheyenne and the Wyoming Department of Transportation for the Amended and Restated Cooperative Agreement for Project ARSCT N561 A02, US 30/Pershing Blvd. to Christensen Road, Cheyenne Streets, Laramie County (2023-2026 Optional 1% Sales Tax Fund, 2017 & 2021 Specific Purpose Option Tax Fund and WYDOT Federal Enhancement funds) Mr. White moved to approve in an amount not to exceed \$758,206.00, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present. (#7814)

[CA] Contract Modification #2 to Contract #6786 between the City of Cheyenne and Novo Benefits, LLC, to extend the term of the agreement for an additional (3) year period (Self Insurance Fund) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #7618 between the City of Cheyenne and T-O Engineers for the Transit Facility Site Plan (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-4-24 for furnishing sixteen (16) new 4 door 2023/2024 model utility police interceptors (SUV) for the Cheyenne Police Department (2019-2022 Optional 1% Sales Tax Fund and Insurance Proceeds). Motion (per Consent Agenda) carried in an amount not to exceed \$1,465,020.65.

[CA] Consideration of Bid #E-5-24 for furnishing one (1) new 2023-2024 motorized articulated trash compactor for the City of Cheyenne Landfill (Solid Waste Fund). Motion (per Consent Agenda) carried in an amount not to exceed \$1,040,757.00.

[CA] Consideration of Bid #S-5-24 for an Agreement between the City of Cheyenne and Arena Products and Services for the City of Cheyenne Ice and Events Center Evaporative Condenser Replacement Project (Ice and Events Center Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-4-24 for an Agreement between the City of Cheyenne and Built Right LLC for the Cheyenne Kiwanis Community House Roof Replacement Project (General Fund Reserve & American Rescue Plan Federal Recovery Funds) – referred to Finance

Committee.

[CA] Consideration to Purchase between the City of Cheyenne and Advanced Comfort Solutions for the purchase and installation of Fire Station Vehicle Exhaust Systems (General Fund & 2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held November 13, 2023 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting, for a bar and grill application filed with the City Clerk’s Office for Wyoming Horse Racing LLC d/b/a Horse Palace, 1802 Dell Range Blvd. Suite 3, Cheyenne, WY.

Announcement was made of a Public Hearing to be held November 13, 2023 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for the City-initiated annexation of 51 parcels of land totaling 100.56 acres comprised of various tracts of land situate in northwest Cheyenne generally located north of Dell Range Boulevard and west of Powderhouse Road.

The following members of the governing body made comments under other business: Dr. Aldrich, Mr. Laybourn, Mr. Segrave, and Mr. White.

Mr. Esquibel moved to meet in executive session pursuant to Wyoming Statute §16-4-405(a)(iii), seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present. Mayor Collins announced members would meet in executive session, not open to the public and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. The following staff members were in attendance: Stephanie Boster, City Attorney, Charles Bloom, Planning & Development Director, Tom Cobb, City Engineer, Eric Fountain, Compliance Director, Kristina F. Jones, City Clerk, and John Kopper, Fire Chief.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:42 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.
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